Terms & Conditions

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Part I — Terms of Service

These Terms of Service (the "Terms") govern your access to and use of the website located at [onpath.studio] (the "Site") and any products or services offered by Onpath Studio, LLC ("Onpath," "we," "us," or "our"). By accessing the Site, creating an account, or placing an order, you agree to be bound by these Terms. If you do not agree, do not use the Site.

These Terms include important provisions on dispute resolution, governing law, and limitation of liability. Please read them carefully.

1. Eligibility

You must be at least 18 years of age and legally capable of entering into a binding contract to use the Site or purchase from us. By using the Site, you represent that you meet these requirements.

2. Account registration

You may browse the Site without an account. To place an order, you may be required to provide an email address and certain other information. You are responsible for maintaining the confidentiality of your account credentials and for all activity conducted through your account. Notify us promptly at [support@onpath.studio] if you suspect unauthorized use of your account.

3. Products

We take reasonable care to describe our products accurately, including fabric composition, dimensions, country of origin, and care requirements. Colors shown on the Site may vary slightly from the actual product due to differences in screen calibration, lighting, and photography conditions. Slight variations in handmade or hand-finished elements are a characteristic of our production process and are not defects.

Availability of products is not guaranteed. Most items are offered on a made-to-order or pre-order basis; see Section 8 below for details.

4. Pricing and payment

Prices are displayed in U.S. dollars (USD) unless otherwise specified and are inclusive of all applicable sales taxes only where required by law to be shown inclusive. Prices may change at any time without notice. The price applicable to your order is the price shown at the time your order is placed and accepted.

We accept the payment methods listed at checkout. For pre-order and made-to-order items, payment is charged in full at the time of order. See Section 8 below.

We reserve the right to refuse or cancel any order for reasons including but not limited to pricing or product information errors, suspected fraud, unauthorized transactions, and limitations on available quantities. If we cancel an order for which payment has been taken, we will issue a full refund to the original payment method.

5. Order acceptance

Your submission of an order constitutes an offer to purchase, not a binding contract. A contract is formed only when we confirm acceptance of your order by email. We may decline to accept an order in our reasonable discretion.

6. Shipping and delivery

Shipping terms, timeframes, carriers, and treatment of international duties and taxes are set out in our Shipping Policy, which is incorporated into these Terms by reference. Risk of loss passes to you upon delivery.

7. Returns and refunds

Returns, exchanges, and refunds are governed by our Returns and Refunds Policy, which is incorporated into these Terms by reference. Nothing in these Terms or in that policy limits any non-waivable statutory rights you may have as a consumer under applicable law, including the 14-day right of withdrawal under Directive 2011/83/EU for consumers in the European Union.

8. Pre-orders and made-to-order production

Most items offered on the Site are produced on a pre-order or made-to-order basis. Production is initiated based on confirmed orders, which allows us to operate without excess inventory and to work closely with our production partners in Italy on quality.

A pre-order is marked as such on the product page and at checkout.

Payment. Payment is collected in full at the time of order, not at the time of shipment. This funds the production of your item and secures your place in the production schedule.

Fulfillment timeline. Our standard fulfillment window is up to eight weeks from the date of order confirmation to the date of shipment. This is an estimate, not a guarantee. Most orders ship within this window; some may ship sooner. You will receive two email updates during the production process: one confirming that production has begun, and one with tracking information when the completed item ships.

Cancellation and changes within 48 hours. You may cancel a pre-order or change the size or color of a pre-ordered item within 48 hours of placing your order, subject to availability, by emailing support@onpath.studio with your order number. After 48 hours, production planning will have begun and cancellations or changes are no longer available.

Cancellation after 48 hours. Once the initial 48-hour window has passed, cancellations and modifications are not available. If you have a significant change in circumstances, contact support@onpath.studio and we will review your request in good faith, but we cannot commit in advance to accommodating it.

Significant delay. If we determine that your order will not ship within the standard eight-week window, we will notify you by email with the reason for the delay, a revised estimated ship date, and your option to either wait for the revised date or

cancel the order for a full refund. If you choose to cancel, we will refund the full purchase price to your original payment method within 10 business days. If we are unable to fulfill your order at all, we will notify you promptly and issue a full refund.

Force majeure. Onpath is not liable for delays or failures in fulfillment caused by events beyond our reasonable control, including natural disasters, public health emergencies, acts of government, labor disputes affecting our production partners or shipping carriers, or disruption in the supply of materials. In such cases, we will communicate promptly and offer the options described above.

After delivery. Once your pre-order ships, the terms of our Shipping Policy apply. Once delivered, the terms of our Returns and Refunds Policy apply, including the 14-day return window for items that are unworn and in original condition.

9. Intellectual property

All content on the Site, including but not limited to the Onpath Studio name and logo, product designs, photography, videography, written copy, graphics, and the selection and arrangement thereof, is the property of Onpath Studio, LLC or its licensors and is protected by copyright, trademark, and other intellectual property laws.

You may not reproduce, distribute, modify, create derivative works of, publicly display, publicly perform, republish, download, store, or transmit any material from the Site without our prior written permission, except as strictly necessary for personal, non-commercial viewing.

User-submitted content. If you submit photographs, reviews, social media posts tagging Onpath, or other content involving our products, you grant Onpath a non-exclusive, worldwide, royalty-free, transferable, sublicensable license to use, reproduce, modify, adapt, publish, and display that content in connection with our business and marketing, with attribution where practical. You represent that you own or have the rights to grant this license and that the content does not violate the rights of any third party.

10. Acceptable use

You agree not to:

- Use the Site in any way that violates applicable law;

- Attempt to gain unauthorized access to any part of the Site, the servers on which it is hosted, or any database connected to it;
- Interfere with the proper working of the Site, including through the introduction of malware, denial-of-service activity, or automated scraping at a scale that places undue load on our systems;
- Impersonate any person or entity, or misrepresent your affiliation with any person or entity;
- Use the Site to transmit unsolicited commercial communications, collect personal information about other users, or engage in fraudulent activity.

We may suspend or terminate your access to the Site at any time for conduct we reasonably believe violates these Terms.

11. Disclaimer of warranties

Except as expressly required by applicable law that cannot be disclaimed, the Site and all products are provided on an "as is" and "as available" basis. To the fullest extent permitted by law, Onpath disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, and non-infringement. We do not warrant that the Site will be uninterrupted, error-free, or secure.

This section does not exclude or limit any warranty, remedy, or right that cannot be excluded or limited under applicable consumer protection law.

12. Limitation of liability

To the fullest extent permitted by law, Onpath Studio, LLC, together with its members, managers, officers, employees, agents, and contractors, shall not be liable for any indirect, incidental, special, consequential, exemplary, or punitive damages arising out of or related to your use of the Site or purchase of any product, including but not limited to lost profits, lost data, or business interruption, whether based in contract, tort, strict liability, or otherwise, and whether or not we have been advised of the possibility of such damages.

Our total aggregate liability to you for any claim arising out of or related to these Terms or the Site shall not exceed the greater of the amount you paid to Onpath in

the twelve months preceding the event giving rise to the claim, or one hundred U.S. dollars (USD $100).

The limitations in this section do not apply to liability that cannot be limited under applicable law, including liability for death or personal injury caused by negligence, fraud, or other non-waivable categories. Nothing in these Terms limits the statutory rights of consumers in jurisdictions where such limitations are not permitted, including EU consumer protection law.

13. Indemnification

You agree to indemnify, defend, and hold harmless Onpath Studio, LLC and its members, managers, officers, employees, agents, and contractors from and against any claims, damages, losses, liabilities, and expenses (including reasonable attorneys' fees) arising out of or related to your breach of these Terms, your violation of applicable law, or your violation of any third-party right in connection with your use of the Site.

14. Governing law and dispute resolution

These Terms and any dispute arising out of or related to them or the Site are governed by the laws of the Commonwealth of Massachusetts, United States, without regard to its conflict-of-laws principles. This choice of law does not deprive consumers resident in the European Union of the protection afforded by mandatory consumer protection law of their country of residence.

Informal resolution. Before initiating any formal dispute, you agree to contact us at support@onpath.studio and attempt in good faith to resolve the dispute through informal negotiation for a period of at least 30 days.

Arbitration. If informal resolution does not succeed, you and Onpath agree that any dispute arising out of or related to these Terms or your use of the Site shall be resolved by binding arbitration administered by the American Arbitration Association under its Consumer Arbitration Rules, rather than in court. The arbitration shall take place in Suffolk County, Massachusetts, or by video or telephone if the claimed amount is less than USD $10,000. The arbitrator's decision shall be final and binding.

Carve-out for small claims. Either party may bring an individual action in a small claims court of competent jurisdiction in lieu of arbitration, provided the claim remains within the jurisdictional limits of that court.

Class action waiver. You and Onpath agree that any dispute resolution proceeding shall be conducted only on an individual basis and not in a class, consolidated, or representative action. If this waiver is found unenforceable, the entire arbitration agreement shall be void.

EU consumer carve-out. The arbitration and class-action-waiver provisions above do not apply to consumers resident in the European Union to the extent they conflict with mandatory consumer protection law. Such consumers retain the right to bring proceedings in the courts of their country of residence.

15. Severability

If any provision of these Terms is held invalid or unenforceable, that provision shall be enforced to the maximum extent permissible, and the remaining provisions shall remain in full force and effect.

16. Entire agreement

These Terms, together with the Privacy Policy, Cookie Policy, Returns and Refunds Policy, Shipping Policy, and any other policies posted on the Site, constitute the entire agreement between you and Onpath regarding your use of the Site and supersede any prior agreements.

17. Changes to these Terms

We may update these Terms from time to time. If we make material changes, we will notify you by posting the updated Terms on the Site and updating the effective date. Your continued use of the Site after changes take effect constitutes your acceptance of the revised Terms.

Part II — Privacy Policy

This Privacy Policy describes how Onpath Studio, LLC collects, uses, discloses, and protects personal information in connection with your use of the Site and your

purchases from us.

By using the Site or purchasing from us, you consent to the practices described below. If you do not agree, please do not use the Site.

1. Who we are

Onpath Studio, LLC is a single-member limited liability company formed under the laws of the Commonwealth of Massachusetts, United States.

2. Information we collect

We collect the following categories of personal information:

Information you provide to us. Name, shipping and billing address, email address, telephone number, payment information (processed by our payment provider — we do not store full card numbers ourselves), order history, product preferences, sizing information, and any other information you choose to provide when you create an account, place an order, contact customer service, or subscribe to our communications.

Information collected automatically. IP address, browser type and version, device identifiers, operating system, pages visited, referring URL, search terms used on the Site, time and date of visits, and other usage data collected through cookies and similar technologies. See Part III below.

Information from third parties. If you interact with us through social media platforms, we may receive information from those platforms as permitted by their terms and your privacy settings. If you pay through a third-party payment service, we receive transaction confirmation and limited billing information from that service.

We do not knowingly collect information from individuals under the age of 18. If you believe we have collected information from a minor, contact us at support@onpath.studio and we will delete it.

3. How we use your information

We use personal information to:

- Process and fulfill your orders, including production scheduling for made-to-order items, shipping, customs documentation, and delivery.
- Communicate with you about your orders, respond to customer service inquiries, and notify you of production and shipping updates.
- Send you marketing communications, where you have consented or where permitted by law, including product launches, editorial content, and showroom invitations. You may unsubscribe at any time.
- Operate, maintain, and improve the Site.
- Detect, prevent, and respond to fraud, security incidents, and other unlawful activity.
- Comply with legal obligations, including tax, customs, and regulatory reporting.
- Enforce our Terms of Service and other agreements.

4. Legal basis for processing (for customers in the EEA and UK)

If you are in the European Economic Area or the United Kingdom, we rely on the following legal bases under the General Data Protection Regulation and UK GDPR:

- **Performance of a contract** — to process your orders and provide the products you purchase.
- **Legitimate interests** — to operate our business, prevent fraud, improve our services, and communicate with existing customers about similar products, subject to your right to object.
- **Consent** — for marketing communications to non-customers, for non-essential cookies, and for certain processing activities where consent is the appropriate basis. You may withdraw consent at any time.
- **Legal obligation** — to comply with tax, customs, anti-money-laundering, and other applicable law.

5. How we share your information

We do not sell your personal information. We share personal information only with the following categories of recipients:

Service providers. We work with third parties who process personal information on our behalf to operate the business. These include:

- **Shopify Inc.** — e-commerce platform, Site hosting, and order management.
- **Klaviyo, Inc.** — email marketing and customer relationship management.
- **Shipping carriers** — to deliver orders and provide tracking information.
- **Customs brokers** — for international shipments, as required by law.
- **Production partners** — to fulfill made-to-order items.
- **Analytics and advertising providers** — to measure Site performance and, where you have consented, to deliver relevant advertising.

Each of these providers is contractually required to use personal information only as necessary to provide their services and in accordance with applicable privacy law.

Legal recipients. We may disclose personal information when required by law, in response to a valid legal request, or to protect our rights, property, or safety, or that of our customers or others.

Business transfers. If Onpath is involved in a merger, acquisition, sale of assets, or similar transaction, personal information may be transferred as part of that transaction, subject to the terms of this Privacy Policy.

6. International transfers

Onpath is based in the United States. Personal information we collect may be transferred to, stored in, and processed in the United States and in other countries where our service providers operate. These countries may have data protection laws different from those in your jurisdiction.

When we transfer personal information of individuals in the EEA or UK outside of those regions, we rely on appropriate safeguards, including the European Commission's Standard Contractual Clauses and equivalent UK mechanisms, to ensure your information remains protected.

7. How long we keep your information

We retain personal information for as long as necessary to fulfill the purposes for which it was collected, including to provide our products and services, comply with legal and tax obligations, resolve disputes, and enforce our agreements.

As a general rule:

- **Customer account and order information** — retained for seven years after your last interaction, to comply with tax and accounting record-keeping requirements.
- **Marketing preferences and unsubscribe records** — retained indefinitely, to ensure we honor your preferences.
- **Website analytics** — retained for up to 26 months.

When personal information is no longer needed, we securely delete or anonymize it.

8. Your rights

Depending on where you live, you may have the following rights in relation to your personal information:

- The right to **access** the personal information we hold about you.
- The right to **correct** inaccurate or incomplete personal information.
- The right to **delete** personal information, subject to certain legal exceptions.
- The right to **restrict or object** to certain types of processing.
- The right to **data portability** — to receive your personal information in a structured, machine-readable format.
- The right to **withdraw consent** at any time, where processing is based on consent.
- The right to **lodge a complaint** with a supervisory authority.

To exercise any of these rights, contact us at support@onpath.studio. We will respond within the timeframes required by applicable law — typically within 30 days.

For residents of California

Under the California Consumer Privacy Act (CCPA) as amended by the California Privacy Rights Act (CPRA), California residents have additional rights, including:

- The right to **know** what categories of personal information we collect, the sources of that information, the purposes for collecting it, and the third parties with whom we share it.
- The right to **delete** personal information we have collected, subject to exceptions.
- The right to **correct** inaccurate personal information.
- The right to **opt out of the sale or sharing** of personal information. *Onpath does not sell personal information and does not share personal information for cross-context behavioral advertising without consent.*
- The right to **limit the use of sensitive personal information**.
- The right to **non-discrimination** for exercising your privacy rights.

To exercise these rights, contact us at [PRIVACY EMAIL]. We may need to verify your identity before responding to your request.

9. Cookies and similar technologies

The Site uses cookies and similar technologies. For detailed information on the cookies we use and how to manage them, please see Part III below.

10. Security

We implement reasonable technical, administrative, and physical safeguards designed to protect personal information against loss, theft, misuse, and unauthorized access. No system is perfectly secure, and we cannot guarantee the absolute security of information transmitted to or from the Site.

Payment information is processed by Stripe and is protected under PCI DSS standards. We do not store full payment card numbers on our systems.

11. Third-party links

The Site may contain links to third-party websites and services. This Privacy Policy applies only to the Site and to Onpath's processing of personal information. We are not responsible for the privacy practices of third parties, and we encourage you to review the privacy policies of any third-party sites you visit.

12. Changes to this Privacy Policy

We may update this Privacy Policy from time to time. If we make material changes, we will notify you by posting the updated policy on the Site and, where appropriate, by email. The effective date at the top of this page indicates when the policy was last revised. Your continued use of the Site after an update indicates your acceptance of the revised policy.

If Onpath has appointed a representative in the European Union or United Kingdom under Article 27 of the GDPR or UK GDPR, that representative's details will be provided here once designated.

Part III — Cookie Policy

This Cookie Policy explains how Onpath uses cookies and similar technologies on the Site. It should be read together with the Privacy Policy in Part II above.

1. What are cookies

Cookies are small text files that a website places on your device when you visit. They are widely used to make websites work, to improve user experience, and to provide information to the website operator. Similar technologies such as web beacons, pixels, and local storage are used for the same purposes and are covered by this Policy.

2. Categories of cookies we use

Strictly necessary cookies. These cookies are essential for the Site to function and cannot be switched off. They support basic functions such as page navigation, shopping cart operation, checkout, and maintaining your session while you browse. The Site cannot be used without them.

Performance and analytics cookies. These cookies help us understand how visitors interact with the Site — which pages are most visited, how long visitors spend on each page, and whether error messages are shown. The information is aggregated and used to improve the Site. We use analytics tools provided by Shopify and may use Google Analytics or similar services.

Functional cookies. These cookies enable enhanced functionality and personalization, such as remembering your language or region preferences. They may be set by us or by third-party providers whose services we have added to the Site.

Marketing and advertising cookies. These cookies are used to deliver advertising more relevant to you and your interests, to measure the effectiveness of advertising campaigns, and to limit the number of times you see an advertisement. They are typically set by advertising partners, including Meta (Facebook and Instagram), with our permission. They work by uniquely identifying your browser and device.

3. Third parties

The Site includes cookies and similar technologies from the following third parties:

- **Shopify** — e-commerce platform functionality, cart, checkout, and performance analytics.
- **Klaviyo** — email marketing personalization and analytics.
- **Meta** — advertising measurement and retargeting, where consent is provided.
- **Google** — analytics, where consent is provided.

Each of these third parties has its own privacy policy governing their use of cookies.

4. How to manage cookies

You can manage cookies in several ways:

Cookie consent banner. The first time you visit the Site, we present a cookie banner that allows you to accept or reject non-essential cookies. You can change

your preferences at any time by clicking the cookie preferences link in the Site footer.

Browser settings. Most browsers allow you to see what cookies are set on your device, to delete them, and to block some or all of them. The process varies by browser — consult your browser's help documentation.

Opt-out tools. For advertising cookies, you can opt out through industry tools such as youronlinechoices.eu (EU), optout.aboutads.info (US), or youradchoices.ca (Canada).

Blocking all cookies, including strictly necessary ones, will prevent parts of the Site from working. Blocking only non-essential cookies will not affect your ability to browse or purchase.

5. Changes to this Cookie Policy

We may update this Cookie Policy from time to time to reflect changes in the cookies we use or for legal or operational reasons. The effective date at the top of this page indicates when the policy was last revised.

Part IV — Accessibility Statement

Onpath Studio is committed to making the Site accessible to as wide an audience as possible, including people with disabilities. Accessibility is an ongoing effort, not a state we consider finished.

1. Our standard

We aim to conform to the **Web Content Accessibility Guidelines (WCAG) 2.1, Level AA** published by the World Wide Web Consortium. These guidelines set out requirements that make web content more accessible to people with a range of disabilities, including visual, auditory, motor, and cognitive impairments.

2. Current status

We review the Site regularly against the WCAG 2.1 AA criteria and work with our developers and platform providers to address issues as they are identified. Areas

of ongoing attention include:

- Sufficient color contrast between text and background.
- Alternative text for meaningful images.
- Keyboard accessibility for all interactive elements.
- Screen reader compatibility.
- Form labels and error messaging.
- Video captions and transcripts, where video is used.

We acknowledge that no website is fully accessible to every user at every moment, and that some third-party embedded content on the Site may not fully conform to our accessibility goals. Where this is the case, we work with those third parties to improve the experience.

3. Reporting an issue

If you encounter an accessibility barrier on the Site — a page that does not read properly with a screen reader, a form you cannot complete, an image without alternative text, or anything else — please contact us.

Email: support@onpath.studio

Please include:

- The URL of the page where you encountered the issue;
- A description of the issue;
- The assistive technology you were using (if any), including browser and version.

We aim to respond to accessibility inquiries within five business days.

4. Alternative means of access

If you are unable to complete a purchase or obtain information through the Site due to an accessibility barrier, we are glad to assist you directly. Contact us at support@onpath.studio and we will help you complete your order or answer your question.

5. Continuous improvement

Accessibility considerations are part of the design and development process for any new feature on the Site. We train team members involved in content and development on accessibility principles, and we evaluate the Site's accessibility as part of our periodic reviews.